

25STCP03973 25STCP03973

County: los-angeles

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Case Number: 25STCP03973 Hearing Date: July 30, 2026 Dept: 834

Superior Court of

California

County of Los Angeles

Department 78

CHRISTOPHER

MANCINI,

Petitioner,

vs.

THE

REGENTS OF THE UNIVERSITY OF CALIFORNIA,

Respondent.

Case No.:

25STCP03973

Hearing

Date:

July 30,

2026

[TENTATIVE]

ORDER RE:

PETITION

FOR WRIT OF ADMINISTRATIVE MANDATE/REVIEW

I. BACKGROUND

1. Petition, Opposition, and Reply

Petitioner Christopher Mancini (Petitioner), a student at the University of California, Los Angeles (UCLA or “the University”), filed this action on October 13, 2025, seeking a writ of administrative mandate/review. Petitioner challenges a decision by the Regents of the University of California (Respondent) to impose a nine-quarter suspension on Petitioner after finding Petitioner violated two sections of UCLA’s Student Conduct Code (Conduct Code). Petitioner prays for an order compelling Respondent to set aside its decision and remanding Petitioner’s case for further proceedings consistent with the Court’s order.

Petitioner filed his operative First Amended Petition (FAP) on January 16, 2026.

On January 26, 2026, Respondent lodged the 35-page Administrative Record (AR) with the Court.

On March 25, 2026, Petitioner filed his opening brief in support of his Petition.

On May 14, 2026, Respondent filed its opposition brief.

On June 10, 2026, Petitioner filed his reply brief.

2. Underlying Incidents

The primary incident (Incident) underlying the University’s disciplinary action occurred on February 7, 2025. (AR 10.) On that date, Petitioner worked as a referee overseeing a basketball game at the Wooden

Center gymnasium on UCLA's campus. (AR 10.) Another student, designated "Witness 1" in the administrative record, worked as a Competitive Sports Supervisor and oversaw Petitioner's work as referee. (AR 10.)

During a break in one basketball game, Petitioner and Witness 1 began verbally arguing. (AR 10.) Witness 1 stated he "gave [Petitioner] feedback" and Petitioner reacted badly. (AR 10.) Petitioner contends he and Witness 1 had a contentious relationship prior to the date of the Incident, and Witness 1 spoke to him disrespectfully, then threateningly. (AR 10.) In either case, the encounter concluded with Petitioner punching Witness 1 in the head, after which both students left the gymnasium. (AR 5 [Incident video]; AR 10 [Hearing Report]; see also FAP, ¶ 20 [third student "helped break up [Witness 1] and Petitioner who separately left"].)

The University of California Police Department (UCPD) arrested Petitioner two days after the Incident. (AR 10-11.) After the arrest, UCPD briefly incarcerated Petitioner in a holding cell. (AR 11.)

The second incident underlying the University's disciplinary action took place while Petitioner was in holding, when he climbed onto a sink and slapped or punched the security camera placed in his cell ("cell camera"). (AR 6 [incident video], AR 10-11 [Hearing Report].)

3. The University's Investigation

On February 21, 2025, Associate Dean of Students Benito Nieves (Nieves) notified Petitioner that Petitioner would be charged with violations of Conduct Code sections 102.04b (Damage or Destruction of any University Property) and 102.08 (Conduct that Threatens Health or Safety). (AR 9, AR 33-34.) Nieves' letter notifying Petitioner of the charges instructs Petitioner to "familiarize yourself with [the Conduct Code]" and explains his right to select an Advisor to participate in disciplinary proceedings. (AR 33-34.)

On March 13, 2025, Nieves met with Petitioner and his Advisor, Stephen Fisch. (AR 24.) Nieves made various initial disclosures regarding Nieves' role, Petitioner's rights, and the probable sanctions if a disciplinary hearing panel ultimately found Petitioner had violated the Conduct Code. (AR 24.) The meeting was not transcribed or recorded. (AR 24.) Nieves' Meeting Notes state that he "confirmed that [Petitioner] received and reviewed the UCPD summary" of events. (AR 24.)

On April 9, 2025, Nieves corresponded with a UCPD representative, who stated that repairs to the cell camera Petitioner had damaged cost approximately \$750. (AR 11.)

On April 24, 2025, Nieves met with Witness 1. (AR 11.)

Witness 1 characterized Petitioner's behavior during the Incident as going "from zero to 100" and recalled Petitioner threatening to "beat the shit out of" Witness 1. (AR 11.) During this meeting, Nieves' notes reflect that he stated that Witness 1 "[was] not required to participate in the process" and could "opt out of sharing" and that Petitioner would "receive a summary, not a transcript, of what [Witness 1] shared" during the meeting. (AR 27.)

On May 1, 2025, Nieves met with Petitioner again. (AR 11, AR 25-26.) At that meeting, Petitioner and Nieves reviewed video footage of the Incident. (AR 11-12, AR 23 [video "viewed with C. Mancini"].) Petitioner identified himself, Witness 1, and a third student, Witness 3, in the footage. (AR 12.) [1] Nieves "shared [with Petitioner] the updates from [Nieves'] meeting with Witness #1". (AR 25.) As with the March 13 meeting, the May 1 meeting was not transcribed or recorded. (AR 25-26.)

On May 2, 2025, Nieves met with Witness 3. (AR 12, AR 32-33.)

Witness 3 recalled that Witness 1 "attempted to discuss the matter [with Petitioner] outside, as the environment was "pretty loud;" that Petitioner became violent after Witness 1 told him, "[t]hat is it, go home. You are done for the day;" and that when Witness 3 attempted to intervene, Petitioner asked, "[d]o you want to go, too?," and Witness 3 believed Petitioner was about to assault him as well. (AR 12.) As with Witness 1, Nieves informed Witness 3 his participation was optional and no transcript of his statement would be provided to Petitioner. (AR 32.)

On June 26, 2025, Nieves notified Petitioner that his case had been referred to the Student Conduct Committee for a disciplinary hearing. (AR 35.)

4. The Disciplinary Hearing

On July 22, 2025, a Student Conduct Committee Hearing Panel (Panel) conducted a hearing via Zoom. (AR 9.) Nieves participated for the

University in that he “provided an overview of the case and was available to answer questions.” (AR 9.) Petitioner also participated, as did as an Advisor and a Support Person on his behalf. (AR 9.)

Nieves presented the Panel with the findings from his investigation, stated above.

At the hearing, Petitioner “took ‘full responsibility for [his] part’” in the Incident and expressed regret that the Incident became physically violent. (AR 14, bracketing in original.) Petitioner characterized the scene as chaotic, with “‘very little space between [him] and [Witness 1]’” with “‘everyone ... yelling.’” (AR 14, bracketing in original.) Petitioner contended he gave Witness 1 the opportunity to disengage from the encounter. (AR 14.) He also stated that Witness 1 had “‘lurched’ forward at [Petitioner]” after “‘getting in [his] face,’” such that Petitioner feared for his safety and acted in self-defense. (AR 14, bracketing in original.)

The Panel issued a written decision after the hearing. (AR 9-18.) The Panel’s decision recited evidence from both parties that it “focused on,” “noted,” or “discussed” in reaching its final decision. (AR 16.) The Panel found that “insufficient information” or “inconsistencies” precluded a finding that Petitioner had made threatening statements that caused Witness 1 or Witness 3 to be “in fear for their own safety” or “in sustained fear for their own safety” during the Incident. (AR 16.) The Panel “found it more likely than not” that Petitioner had violated Conduct Code Section 102.08.

The Panel also recited the evidence in support of Petitioner’s damaging the UCPD cell camera and “found it more likely than not” that Petitioner had violated Conduct Code Section 102.04b. (AR 16-17.)

The Panel recommended a nine-quarter suspension, from Summer 2025 through Summer 2027. (AR 17, 18.)

On August 5, 2025, Jasmine JS Rush, Dean of Students, issued a letter to Petitioner upholding the Panel’s findings without substantive discussion. (AR 7-8.)

5. Petitioner’s Appeal Letter

On

August 14, 2025, Petitioner submitted an appeal letter [2] to Monroe Gordon Jr., Vice Chancellor for Student Affairs, contending Respondent should reverse its decision for the following reasons:

1. Petitioner submitted written questions for witnesses, but they were not posed because the witnesses did not appear at the hearing and Dean Nieves interviewed them before the questions were submitted. A few of Petitioner's questions were posed to the Dean Nieves during the Hearing, but he did not have percipient knowledge to answer the questions (AR 1);
2. Petitioner was not provided a copy of the video of the Incident before his hearing (AR 1);
3. The camera in Petitioner's holding cell was "restored to functionality" as demonstrated during criminal proceedings against him, contrary to the Panel's findings after hearing (AR 1-2); and
4. The University's sanction was unjustifiably harsh because, among other reasons, (a) Witness 1 was the aggressor and Petitioner acted in self-defense; (b) Petitioner had suffered no prior discipline during his time as a University student; and (c) the discipline fell outside the stated purpose of University disciplinary proceedings, since Petitioner had completed his degree requirements and there was no ongoing threat to student safety and Witness 1 was not injured in the Incident (AR 2-3).

On August 22, 2025, Vice Chancellor Gordon confirmed receipt of Petitioner's letter and declined to vacate or modify the Panel's decision. (AR 19.)

On October 13, 2025, Petitioner filed this action, relying on the same grounds for relief stated in his August 14, 2025 appeal letter.

II. LEGAL STANDARD

The Superior Court may issue a writ of mandate "for the purpose of inquiring into the validity of any final administrative order or decision made as the result of a proceeding in which by

law a hearing is required to be given, evidence is required to be taken, and discretion in the determination of facts is vested in the inferior tribunal, corporation, board, or officer[.]” (Code Civ. Proc., § 1094.5(a).)

“The inquiry in such a case shall extend to the questions whether the respondent has proceeded without, or in excess of, jurisdiction; whether there was a fair trial; and whether there was any prejudicial abuse of discretion. Abuse of discretion is established if the respondent has not proceeded in the manner required by law, the order or decision is not supported by the findings, or the findings are not supported by the evidence.” (Id., subd. (b).)

“A university student may challenge a disciplinary sanction by a petition for writ of administrative mandate. [Citations.] ... [¶] ‘ “The statute’s requirement of a ‘ “fair” ’ trial means that there must have been ‘a fair administrative hearing.’ ” [Citation.] Where student discipline is at issue, the university must comply with its own policies and procedures.’ [Citation.]” (Doe v. Regents of University of California (2026) 118 Cal.App.5th 1245, 1254 (Doe (2026)).)

For a public university, “[i]n addition to the university’s expertise and familiarity with its student conduct procedures, [t]he California Constitution (art. IX, § 9, subd. (a)) grants [the Regents] “ ‘ “broad powers to organize and govern the university and limits the Legislature’s power to regulate either the university or the [R]egents.” ’ ” ... [¶] This power necessarily includes quasi-judicial administrative authority to resolve disciplinary disputes by applying university policies to particular cases.” (Berman v. Regents of University of California (2014) 229 Cal.App.4th 1265, 1272, internal citations omitted.)

III. DISCUSSION

1. Standards of Review

The Court applies its independent judgment to the bulk of the instant dispute. The primary question is solely of law: whether, on the undisputed facts, Petitioner was provided with a fair hearing that satisfies his due process rights. “On questions of law arising in mandate proceedings, [the court] exercise[s] independent judgment.” (Christensen

v. Lightbourne (2017) 15 Cal.App.5th 1239, 1251.)

One of Petitioner's arguments is subject to a heightened standard: his argument that the University imposed a penalty disproportionate to his offenses. Where, as here, relevant facts are undisputed, a court pays the most extreme deference when reviewing the severity of a penalty. A court may overturn a university's disciplinary sanctions "only in the exceptional case, when it is shown that reasonable minds cannot differ on the propriety of the penalty[.]" (Doe (2016), v. Regents of University of California (2016) 5 Cal.App.5th 1055, 1106.)

2. Fairness of Hearing

Petitioner primarily contends he did not receive a fair hearing because he was not provided an opportunity to cross-examine witnesses during Nieves' investigation or the subsequent disciplinary hearing.

The Court disagrees.

"While live adversarial questioning may be considered essential in the context of a criminal trial ... , there is no absolute right to a live hearing with cross-examination in administrative proceedings, even where constitutional due process applies. As courts have explained in other administrative contexts, "[d]ifferences in the origin and function of administrative agencies 'preclude wholesale transplantation of the rules of procedure, trial, and review which have evolved from the history and experience of courts.' ... The judicial model of an evidentiary hearing is neither a required, nor even the most effective, method of decisionmaking in all circumstances." ' ... The fair procedure doctrine similarly recognizes 'the practical limitations on the ability of private institutions to provide for the full airing of disputed factual issues.' " (Boormeester v. Carry (2023) 15 Cal.5th 72, 93-94 (Boormeester).)

"Requiring live hearings featuring real-time cross-examination of witnesses in the accused student's presence would be contrary to our [Supreme Court's] ... conclusion that 'fair procedure does not compel formal proceedings with all the embellishments of a court trial.'

[Citation.] It would also be contrary to [the Supreme Court's] admonition that courts must refrain from fixing rigid trial-like procedures 'that must invariably be observed.' [Citation.]" (Id., at p. 93.) "[T]he "procedures for dismissing college students [are] not analogous to criminal proceedings and could not be so without at the same time being both impractical and detrimental to the educational atmosphere and functions of a university."" (Id., at p. 94, internal citations omitted.)

"A university's primary purpose is to educate students: "[a] school is an academic institution, not a courtroom or administrative hearing room." ... Although a university must treat students fairly, it is not required to convert its classrooms into courtrooms.' [Citation.]" (Doe v. Regents of University of California (2016) 5 Cal.App.5th 1055, 1078 (Doe (2016))); see also James v. City of Coronado (2003) 106 Cal.App.4th 905, 912 ["we reject the notion that as a matter of law every administrative appeal ... must afford ... an opportunity to confront and cross-examine witnesses"].)

Respondent cites a standard for fair process stated recently in Ayach v. Regents of University of California (2024) 102 Cal.App.5th 331 (Ayach), where two petitioners challenged the decision of the University of California, Riverside to expel them.

The petitioners in Ayach asserted due process arguments nearly identical to those Petitioner asserts here: "that the University's administrative hearings leading to their expulsions did not afford them due process because (1) the charging documents and evidence presented used pseudonyms to identify witnesses who provided statements to University investigators, and (2) [the petitioners] were purportedly denied the opportunity to confront or cross-examine witnesses at the hearing." (Ayach, supra, at p. 33.)

The Court of Appeal affirmed the decision denying the petitioners a writ of mandate, holding that "[d]ue process in the context of University discipline proceedings is a flexible concept that depends on the specific circumstances and charges at issue in each particular case," and "the proceedings afforded [the petitioners] the process they were due, given the nature of the charges and their response." (Ibid.)

The Ayach court distinguished numerous

decisions enforcing a right to confrontation in administrative proceedings in cases where a student was accused of sexual assault. Here, Petitioner relies on the same precedents Ayach distinguished. The decision distinguished those cases as cases that “turn[ed] on witness credibility,” where it was necessary for “the adjudicator or adjudicators [to] be able to see the parties’ testimony and testimony of important witnesses so their demeanor may be observed.” (Id., at pp. 341-342, quoting Knight v. South Orange Community College (2021) 60 Cal.App.5th 854, 866, citing Doe v. Regents of University of California (2021) 70 Cal.App.5th 521, Doe v. Westmont College (2019) 34 Cal.App.5th 622, Doe v. Regents of University of California (2018) 28 Cal.App.5th 44; see also Doe v. Regents of University of California (2026) 118 Cal.App.5th 1245.)

The Court finds this case more like Ayach than the sexual assault precedents. The Courts of Appeal in the sexual assault precedents went out of their way to emphasize the unique circumstances there that posed particular risks to the accused: for example, the high legal and reputational stakes, and the uniquely private setting for the alleged conduct. The facts in Ayach were not subject to the same special considerations; the court reviewed a widespread toxic hazing scheme that involved simple physical violence inflicted on a number of students. The violations took place in public and were well-supported by witness accounts.

The accusations against Petitioner here are similarly unremarkable. Petitioner’s assault on Witness 1 was a single incident, captured on video, with only a few contextual facts disputed. [3] For the damage to the cell camera in particular, the entire incident was clearly recorded.

While Petitioner relies on Penal Code concepts of self-defense, the University’s disciplinary process is not a criminal prosecution, and criminal standards do not govern student discipline. The question for the Panel was not whether Petitioner would have a viable criminal defense, but whether his conduct violated the Conduct Code. The Panel’s finding of “physical assault” necessarily reflects its determination that Petitioner’s self-defense theory did not negate the violation. Due process does not require the University to issue separate findings disposing of criminal law defenses that are inapplicable in the administrative context. (See Goss v. Lopez (1975) 419 U.S. 565; Doe v. University of Southern California (2016) 246 Cal.App.4th 221; Doe v. University of Southern California (2018) 28 Cal.App.5th 26; Doe (2016), supra, 5 Cal.App.5th

1055; and Ayach, supra, 102 Cal.App.5th 331, all of which reject the importation of criminal law-style procedural and substantive standards into school discipline.)

The relevant decisions emphasize that fair procedure relies on the circumstances of a given offense. (See Boermeester, supra, 12 Cal.5th, at p. 87 [fair procedures “‘depend[] largely on “the nature of the tendered issue” ’ ”].) “[T]o comport with due process,’ the university’s procedures must “‘be tailored, in light of the decision to be made, to ‘the capacities and circumstances of those who are to be heard,’ [citation] ... to insure that they are given a meaningful opportunity to present their case.”” (Doe v. Regents of University of California (2016) 5 Cal.App.5th, at p. 1078, internal citations omitted.)

On the undisputed facts regarding the disciplinary procedure, the Court finds Petitioner was given a meaningful opportunity to present his case. Witness accounts were relayed to him through Dean Nieves’ testimony, and he was given the opportunity to explain his version of events – to Dean Nieves initially, and then to the Panel. Petitioner reviewed the video of the Incident alongside Dean Nieves long before his hearing (and he does not make a persuasive case that the University was required to give him his own personal copy of the video).[4] As noted, the substance of the Incident was captured on video; for the damage to the cell camera, Petitioner’s conduct was entirely captured, and there were no conflicting witness accounts.[5]

The sexual assault precedents Petitioner relies on are distinguishable, as confirmed in Ayach.[6] This is not the type of credibility-dependent case that triggers the enhanced procedural protections that reviewing courts have recognized in sexual misconduct cases. Those protections have arisen where witness credibility is uniquely dispositive and there is little other evidence to resolve what occurred. In this matter, other than the camera destruction, the core underlying act of Petitioner punching another student in the head is undisputed, supported by video footage, corroborated by Petitioner’s own admissions, and supported by consistent contemporaneous witness statements. The Panel also rejected the alleged “threats” charge based on inconsistencies, which confirms that it did not treat hearsay uncritically.

The remaining dispute centers on Petitioner’s

subjective interpretation of the events, not the occurrence of the punch (or the camera destruction) itself. Petitioner's argument that the Panel was required to make an express finding resolving his asserted theory of self-defense is unpersuasive. Administrative fact-finders in student discipline matters are not obligated to parse or formally reject every alternative explanation offered by the accused, particularly where the core conduct is captured on video and admitted by the student. The Panel's finding that Petitioner engaged in "physical assault" necessarily reflects its rejection of Petitioner's self-defense theory. Nothing in Topanga requires an agency to issue line-item findings on speculative or self-serving theories where the Panel's conclusion is amply supported by the evidence. Petitioner's assertion that he perceived danger does not, on its own, convert an otherwise straightforward incident into a credibility dispute requiring live testimony.

In light of the capacities of the parties involved, under the circumstances of this case, and based on the nature of the tendered issue, the Court finds Petitioner was given sufficient opportunity to defend himself and challenge other witnesses' account of events.

The Court also declines to reverse the University's decision based on the severity of the sanction imposed. As noted above, the University is entitled to extreme deference when determining appropriate disciplinary sanctions. Even if another decisionmaker might have selected a lesser sanction, the question is whether "no reasonable mind" could impose this penalty. On this record, Petitioner has not demonstrated any abuse of discretion.

IV. CONCLUSION

Petitioner Christopher Mancini's Petition for Writ of Administrative Mandate/Review is DENIED.

Pursuant to Local Rule 3.231(n), Respondent shall prepare, serve, and ultimately file a proposed judgment.

DATED:

July 30, 2026

Hon. Tiana J. Murillo

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If

a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Based on the AR, the Court

understands Witness 1 and Witness 3 to be the percipient witnesses Dean Nieves interviewed regarding the primary Incident that took place on February 7, 2025. Witness 2 is UCPD Sergeant Adrian Anderson, whom Nieves interviewed regarding damage to the cell camera but who did not witness the February 7, 2025 Incident. (See AR 25.)

[2] The Index lodged with the Court

erroneously dates Petitioner's August 14, 2025 appeal letter February 7, 2025, the date of the Incident. The parties' papers and the response from Vice Chancellor Gorden confirm the letter was transmitted by "email dated August 14,

2025.” (AR 19; see also Opp., 6:6:17-18.)

[3] Petitioner

contends the footage of the assault does not offer a full version of events because it contains jumps in time and lacks audio. The Court disagrees. First, the time gap argument is derivative of Petitioner’s self-defense theory, which the Panel implicitly but plainly rejected. The footage includes the Incident at its leftmost edge. Petitioner and Witness 1 appear together in the footage at 8:47:50 p.m., after an approximate 75-second jump forward from 8:46:35. That jump does not appear to contain any relevant interaction between Petitioner and Witness 1. Between 8:47:50 and 8:48:05, Witness 1 steps toward Petitioner, while Petitioner steps away. The footage then jumps forward another twenty seconds, and the two students are standing facing each other approximately ten feet away from their original position. Their body language and the distance between them is consistent with both Petitioner and Witness 1’s version of events. The students both step forward and backward while speaking to each other over the course of several seconds, then Petitioner turns his back to Witness 1. At 8:48:58, Petitioner turns abruptly and punches Witness 1 in the head. The Court notes, in fact, that Petitioner’s posture immediately prior to the punch contradicts Petitioner’s contention that he visually observed Witness 1 make a threatening movement that prompted Petitioner to act in self-defense. In other words, the gaps in the footage do not undermine the Panel’s findings regarding the core conduct, which the video does depict and which Petitioner admitted.

[4]

Petitioner’s

assertion that he was entitled to his own downloadable copy of the security footage is unsupported. Nothing in the record suggests that inspection (which Petitioner received) was inadequate for him to present his version of events.

[5] It

is unclear how UCPD’s ability to fix the camera after the damage, which Respondent does not dispute, might have changed the outcome of Petitioner’s case.

[6] Petitioner’s

argument that UCLA violated its own Student Conduct Code appears for the first time in the reply brief. Arguments raised for the first time on reply ordinarily are not considered. In any event, neither party submitted the Conduct Code into evidence through a request for judicial notice or other

proper means; instead, both parties cited webpage links embedded in their briefs, which is not a proper method of introducing evidence. The Court therefore cannot conclude that UCLA departed from its own procedures.